

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
OTNIEL RODRIGUEZ,

SUMMONS
Plaintiff,

-against-

Index No: _____

THE CITY OF NEW YORK; NYPD DET ROBERT LAURENDI;
NYPD P.O. DONNA FOGUS; NYPD P.O. JOHN/JANE DOES #
1-10; C.O. JOHN/JANE DOES # 1-10; the individual
defendant(s) sued individually and in their
official capacities,

Date Filed: _____

Basis of Venue:
occurrence of incident,
Queens County

Defendants.

Jury Trial Demanded

----- X
YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action
and to serve a copy of your answer on plaintiff's attorney within twenty (20)
days of the service of this Summons, exclusive of the day of service (or
within thirty (30) days after service is complete if this Summons is not
personally delivered to you within the State of New York), and in case of
your failure to appear or to answer, judgment will be taken against you by
default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
JANUARY 20, 2018



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorneys for Plaintiff
65 Broadway 715
New York, New York 10006
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD DET. ROBERT LAURENDI
NYPD P.O. DONNA FOGUS
NYPD P.O. JOHN/JANE DOES # 1-10
92-15 Northern Blvd, Jackson
Heights, NY 11372

C.O. JOHN/JANE DOES # 1-10
Vernon C. Bain Center
1 Halleck Street
Bronx, NY 10474

George R. Vierno Center
09-09 Hazen Street
East Elmhurst, NY 11370

George Motchan Detention Center
15-15 Hazen Street
East Elmhurst, NY 11370

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

OTNIEL RODRIGUEZ,

COMPLAINT

Plaintiff,

-against-

Index No: _____

THE CITY OF NEW YORK; NYPD DET ROBERT
LAURENDI; NYPD P.O. DONNA FOGUS; NYPD
P.O. JOHN/JANE DOES # 1-10; C.O.
JOHN/JANE DOES # 1-10; the individual
defendant(s) sued individually and in
their official capacities,

Date Filed: _____

Basis of Venue:
occurrence of
incident, Queens
County

Defendants. **Jury Trial Demanded**

----- X

Plaintiff OTNIEL RODRIGUEZ, by and through his
counsel, Adams & Commissiong LLP alleges upon information and
belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiff seeks relief for the violation of his
rights secured by the laws of the State of New York; New York
State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth,
Sixth, and Fourteenth Amendments to the United States
Constitution. Plaintiff's claims arise from an incident that
arose on or about January 22, 2015. During the incident, the
City of New York, members of the New York City Police Department
("NYPD"), subjected plaintiff to, among other things, false
arrest, unlawful search and seizure, retaliation for free

speech, denial of a fair trial, malicious prosecution, respondeat superior liability, unreasonable detention, and implementation and continuation of an unlawful municipal policy, practice, and custom.

2. the City of New York, and members of the New York City Department of Correction ("DOC") subjected plaintiff to, among other things, failure to protect, retaliation, deliberate indifference, denial of medical care, conspiracy, negligence, intentional and negligent infliction of emotional distress, negligent hiring, supervision, training, retention, and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

3. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, pursuant 42 U.S.C. §§ 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

4. Within 90 days of the incidents alleged in this complaint, plaintiff served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

5. More than 30 days have elapsed since plaintiff's demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

6. This action is being commenced within one year and ninety days of the date of the occurrence herein

7. Venue is proper in the Supreme Court of the State New York, Queens County, because the acts in question occurred in the State of New York, Queens County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Queens County.

PARTIES

8. Plaintiff Otniel Rodriguez is an African American and a resident of the State of New York, Queens County.

9. At all times referred to herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

10. Defendant City of New York was the employer of the individual defendants, and is and was at all times relevant to this complaint responsible for the policies, practices and customs of the NYPD.

11. At all times alleged herein, defendant Detective Robert Laurendi, was a New York City Police Officer employed with the 115th Precinct, located in Queens County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

12. At all times alleged herein, defendant Police Officer Donna Fogus was a New York City Police Officer employed with the 115th Precinct, located in Queens County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

13. At all times alleged herein, defendants Police Officers John Doe # 1-5 were New York City Police Officers employed with the 115th Precinct, located in Queens County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

14. C.O. John Does 1-10, were New York City Correction Officers employed on Rikers Island, or other as yet unknown DOC assignment, who violated plaintiff's rights as described herein.

15. The individual defendant police officers and corrections officers are sued in their individual and official capacities.

STATEMENT OF FACTS

16. On January 22, 2015, at approximately 7:00A.M. plaintiff was in his home on 108th Street in Elmhurst New York, Queens County, in his bedroom when his mother told him that that police were there for him.

17. Plaintiff went to the police officers and they told them that they had a warrant for him.

18. Plaintiff went with the police officers.

19. The officers placed plaintiff in a van and took him to the 115th precinct.

20. Once the police officers came to plaintiff's home, plaintiff was not free to leave.

21. If the defendant officers had a warrant, it was issued upon the basis of extremely unreliable information, the unreliability of which was withheld from the issuing magistrate.

22. Once in the precinct, police officers took plaintiff to the second floor.

23. A detective captain asked plaintiff if he knew why he was there and plaintiff said nom and was told that he had two warrants.

24. Plaintiff was then taken to an interrogation room.

25. Once in the interrogation room, defendant P.O. Fogus asked plaintiff questions about an attempted murder.

26. Plaintiff had no information regarding an attempted murder or any other crimes.

27. It is important to note that on or about January 17, 2015, P.O. Fogus prepared a photo array which contained plaintiff's picture, but the alleged eyewitness did not recognize anyone in the photo array.

28. While in the precinct, plaintiff was placed in line up, supervised by P.O. Fogus.

29. P.O. Fogus subjected plaintiff to a highly suggestive line-up to frame him for a crime he did not commit.

30. P.O. Fogus claimed that an eye witness to the alleged crime identified plaintiff in the line up.

31. Defendant Detective Laurendi placed plaintiff under arrest.

32. Plaintiff was taken to central booking where his arrest was processed.

33. Once in central booking, the Defendants P.O. Fogus and Detective Laurendi, prepared false reports stating that plaintiff had committed various crimes on December 28, 2014.

34. The individual defendants, P.O. Fogus and Detective Laurendi, knew that plaintiff was not involved in the shooting.

35. Throughout the investigation, plaintiff, maintained his innocence and told police he was not involved in the shooting. Nevertheless, they proceeded with the prosecution of plaintiff.

36. P.O. Fogus and Detective Laurendi, as well as the other individual defendants, knowingly omitted and presented false evidence to support a false arrest, malicious prosecution and unfair trial against plaintiff.

37. P.O. Fogus and Detective Laurendi and the defendant police officers maliciously initiated a baseless prosecution and an unfair trial against plaintiff by drafting police reports and signing a criminal court complaint that falsely accused plaintiff of participating in an alleged attempted murder and robbery on December 28, 2014.

38. Detective Laurendi initiated a baseless prosecution and an unfair trial against plaintiff by drafting or assisting in the drafting of a criminal court complaint, that falsely accused plaintiff of participating in an alleged attempted murder and robbery on December 28, 2014.

39. The defendants drafted and submitted the police reports and signed a sworn criminal court complaint prior to any grand jury action to subject plaintiff to a malicious prosecution and an unfair trial.

40. On or about January 19, 2017, plaintiff was acquitted and the case was resolved totally in favor of Plaintiff.

41. Plaintiff was on Rikers Island from January 22, 2015 until on or about December 12, 2016.

42. While on Rikers Island, plaintiff was subject to horrible conditions of confinement.

43. On October 10, 2016, plaintiff was assaulted by numerous detainee.

44. On April 17, 2015, plaintiff was attacked by another detainee.

45. On February 22, 2015, plaintiff was attacked by another detainee.

46. Defendants failed to protect plaintiff, although they had a duty as correction officers to protect plaintiff from being physically assaulted by other detainees.

47. C.O. John/Jane Does # 1-10 acted with deliberate indifference because they were aware that plaintiff was at a substantial risk of serious harm.

48. Due to the conditions of his confinement, plaintiff attempted suicide.

49. Defendants acted with deliberate indifference to plaintiff's safety.

50. The aforesaid violations of plaintiff's rights are not an isolated incident. Defendant City of New York is aware from lawsuits, notices of claim and complaints that many members of the NYPD are insufficiently trained on the proper way to investigate and prosecute crimes.

51. Defendant City of New York is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, the City of New York has failed to take corrective action. This failure caused the defendants to violate plaintiff's rights and injure plaintiff.

52. Moreover, defendant City of New York was aware prior to the incident that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed. Despite such notice, defendants has retained these individuals, and failed to adequately train and supervise them.

53. At all times defendant City of New York by the NYPD, and its agents, servants and/or employees, carelessly, and recklessly trained the individual defendants for the position of police officers and/or assistant district attorneys.

54. At all times defendant City of New York by the NYPD, and its agents, servants and/or employees, carelessly, and recklessly supervised, controlled, managed, maintained and inspected the activities of the individual defendants.

55. At all times defendant City of New York by the NYPD, and its agents, servants and/or employees caused, permitted and allowed the individual defendants to act in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

56. At all times defendant City of New York by the NYPD, and its agents, servants and/or employees carelessly, and recklessly retained in its employ, the individual defendants, who were clearly unfit for their positions, who acted in an illegal, unprofessional, and/or deliberate manner in carrying out their official duties and/or responsibilities.

57. The occurrence(s) and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, and/or intentional conduct of defendant City of New York, and the NYPD, and its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained the individual defendants.

58. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

59. The plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or

act in a suspicious or unlawful manner prior to or during the above incidents.

60. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

61. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights.

62. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

63. The individual defendants, at times acted in concert, and at times acted independently in committing the aforementioned illegal acts against plaintiff.

FIRST CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

64. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

65. Defendants unlawfully stopped and searched plaintiff without a warrant, or consent.

66. Accordingly, defendants are liable to plaintiff for unlawful search and seizure under 42 U.S.C. § 1983, and the Fourth Amendment to the United States Constitution.

SECOND CLAIM**(FALSE ARREST UNDER FEDERAL LAW)**

67. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein

68. Defendants arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

69. Accordingly, defendants are liable to plaintiff for false arrest under 42 U.S.C. § 1983, and the Fourth Amendment to the United States Constitution.

THIRD CLAIM**(DENIAL OF A FAIR TRIAL)**

70. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

71. The individual defendants are liable to plaintiff because they intentionally conspired to fabricate evidence against him, including omitting and/or manipulating videotapes evidence showing his alibi, fabricating testimony, and concealing exculpatory material depriving him of liberty without due process of law.

72. Furthermore, the individual defendants violated the law by making false statements by drafting and signing a sworn criminal court complaint and false police reports.

73. Furthermore, the individual defendants violated the law by gathering exculpatory evidence and manipulating such evidence to obtain a prosecution and unjust conviction, while performing the function of investigators.

74. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it well established that individuals who knowingly use false evidence at trial to obtain a conviction act unconstitutionally and is redressable in an action for damages under 42 U.S.C. § 1983.

75. The individual defendants are also liable to plaintiff because they intentionally created false information likely to influence a fact finder's or jury's decision by drafting and signing a sworn criminal court complaint and police reports, omitting and/or manipulating videotape taped evidence

to suppress plaintiff's alibi, fabricating testimony and evidence, suppressing and concealing exculpatory material and evidence, and forwarding and presenting false information to a court thereby violating plaintiff's constitutional right to a fair trial, and the harm occasioned by such an unconscionable action is redressable in an action for damages under 42 U.S.C. § 1983.

FOURTH CLAIM

(MALICIOUS PROSECUTION UNDER FEDERAL LAW)

76. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

77. The individual defendants are liable to plaintiff for malicious prosecution because prior to any grand action, with intent, knowledge, and malice, the defendants initiated a malicious prosecution against plaintiff by drafting and signing a sworn criminal court complaint and police reports that provided false information to the court, alleging plaintiff had committed various crimes.

78. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

79. The individual defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct and force plaintiff into confessing to a crime he did not commit.

80. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

FIFTH CLAIM

(MALCIOUS PROSECUTION UNDER STATE LAW)

81. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

82. Defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution against plaintiff by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court(s), which alleged plaintiff had committed various crimes; and based upon these false statements, prosecutors prosecuted plaintiff until the case against plaintiff were dismissed in their entirety.

83. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

84. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

SIXTH CLAIM**(DELIBERATE INDIFFERENCE TO SAFETY, FAILURE TO PROTECT)**

85. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

86. The defendants exercised deliberate indifference and cruelty, extreme recklessness, and with the intent to create probable risk to plaintiff, failed to take remedial action, and allowed a dangerous environment to become so pervasive at its DOC detention centers by allowing and permitting inmate gangs to injure and violate other detainees with the approval, support, agreement, and consent of correction officers and officials.

87. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. §§ 1983 and the Fifth, Eighth, and Fourteenth Amendments to the United States Constitution.

SEVENTH CLAIM**(NEGLIGENCE)**

88. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

89. Defendants are liable to plaintiff because defendants owed plaintiff a cognizable duty of care as a matter of law, and breached that duty.

EIGHTH CLAIM**(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)**

90. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

91. That by virtue of the occurrence and defendants, individually and/or by their agents, servants and/or employees, negligently and/or intentionally inflicted emotional harm upon plaintiff.

92. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

93. The defendants breached a duty owed to plaintiff that either unreasonably endangered plaintiff's physical safety, or caused plaintiff to fear for his own safety.

NINTH CLAIM**(FAILURE TO INTERVENE)**

94. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

95. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

96. Accordingly, the defendants are liable to plaintiff for failing to intervene to prevent the violation of plaintiff's constitutional rights.

TENTH CLAIM**(UNREASONABLE DETENTION)**

97. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

98. The individual defendants are liable, under 42 U.S.C. § 1983 and the Fourth Amendment, to plaintiff because plaintiff had a right to be free from continued detention stemming from the mishandling or suppression of exculpatory evidence, and the individual defendants' refusal to investigate available exculpatory evidence. Accordingly, individual defendants violated plaintiff's right to be free from an unreasonable detention and their conduct shocks the conscience.

TWELTH CLAIM**(NEGLIGENT SUPERVISION, HIRING, MONITORING,
TRAINING, AND RETENTION OF UNFIT EMPLOYEES)**

99. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

100. Defendant City of New York is liable to plaintiff because the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of Defendant City of New York, and the DOC and NYPD, its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained,

supervised, controlled, managed, maintained, inspected, and retained its police officers and correction officers.

THIRTEENTH CLAIM

(MONELL CLAIM NYPD)

101. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

102. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

103. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiff: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; and (5) fabricating evidence against innocent persons.

104. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

105. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

106. Further, defendants City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

107. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

108. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling

narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison. In 2011, Brooklyn South narcotics officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

109. Additionally, the existence of the aforesaid unconstitutional customs and policies of profiling minorities, may be inferred from an analysis of the NYPD conducted by the New York Civil Liberties Union ("NYCLU"). The NYCLU's analysis revealed that more than 2 million innocent New Yorkers were subjected to police stops and street interrogations from 2004 through 2011, and that black and Latino communities continue to

be the overwhelming target of these tactics. Nearly nine out of 10 stopped-and-frisked New Yorkers have been completely innocent, according to the NYPD's own reports.

110. In August 2009, Proffer Levine released a report entitled *The Epidemic of Pot Arrests in New York City*, which stated: Perhaps most appalling is who the police are arresting for marijuana possession. United States government studies have consistently found that young whites use marijuana at higher rates than do young blacks or Latinos. But the NYPD has long arrested young blacks and Latinos for pot possession at much higher rates than whites. In 2008, blacks were about 26% of New York City's population, but over 54% of the people arrested for pot possession. Latinos were about 27% of New Yorkers, but 33% of the pot arrestees. Whites were over 35% of the City's population, but less than 10% of the people arrested for possessing marijuana. In 2008, police arrested Latinos for pot possession at four times the rate of whites, and blacks at seven times the rate of whites.

111. Furthermore, documented civilian complaints about officer misconduct show that African Americans are the most likely targets of abuse, but their complaints are largely ignored. According to the City of New York's Civil Complaint Review Board's ("CCRB") Status Report, dated December and January 2010, in 2010 African Americans were overrepresented as

alleged victims of police misconduct. Although making up only 23% of New York City's population, they are 58.5% of the alleged victims in CCRB complaints. On the other hand, whites and Asians were a disproportionately low percentage of alleged victims.

112. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

113. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

114. The City's failure to act resulted in the violation of plaintiff's constitutional rights as described herein.

FOURTEENTH CLAIM

(RESPONDEAT SUPERIOR NYPD)

115. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

116. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff,

including falsely arresting, assaulting, and battering plaintiff.

117. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

FIFTEENTH CLAIM

(RESPONDEAT SUPERIOR NYC DOC)

118. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

119. The individual defendants were acting within the scope of their employment as New York City Correction Officers when they committed the above described acts against plaintiff, including failing to protect plaintiff.

120. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and

d. Such other and further relief as this Court may
deem just and proper, including injunctive and
declaratory relief.

DATED: New York, New York
January 20, 2018

ADAMS & COMMISSIONG LLP.
Attorneys for Plaintiff
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MARTIN E. ADAMS, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

OTNIEL RODRIGUEZ,

VERIFICATION

Plaintiff,

Index No: _____

-against-

Date Filed: _____

THE CITY OF NEW YORK; NYPD DET ROBERT
LAURENDI; NYPD P.O. DONNA FOGUS; NYPD P.O.
JOHN/JANE DOES # 1-10; C.O. JOHN/JANE DOES #
1-10; the individual defendant(s) sued
individually and in their official
capacities,

Defendants.

----- X

STATE OF NEW YORK

ss.:

COUNTY OF NEW YORK

Martin E. Adams, Esq, an attorney-at-law, duly admitted to
practice law in the State of New York, hereby affirms pursuant to the
C.P.L.R. and subscribing as true under the penalties of perjury as
follows:

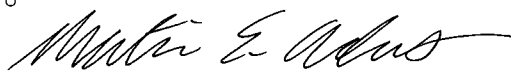
That the Affirmant is a member of the law firm Adams &
Commissiong LLP, the attorneys of record for the plaintiff in the
above entitled action.

That the Affirmant has read the foregoing complaint and knows the
contents thereof; that the same is true to his knowledge, except as to
the matters stated to be alleged upon information and belief, and that
as to those matters he believes them to be true.

That the reason why this verification is made by Affirmant
instead of the plaintiff is because the plaintiff does not reside
within the County in which the firm of Adams & Commissiong LLP
maintain their office.

The grounds of Affirmant's belief as to all matters in the
complaint not stated to be upon his knowledge are based upon
conversations with plaintiff, and a review of records related to this
action.

DATED: New York, New York
JANUARY 20, 2018



MARTIN E. ADAMS, ESQ